Pre-Call Documentation - Procedural Questions & Timeline in Almira Penn Case

4 messages

AshLe' Penn <ashlepenn.ap3@gmail.com> Wed, Jan 28, 2026 at 10:57 AM
To: Sonya.Faulkner@odhs.oregon.gov

Dear Ms. Faulkner,

As committed during our previous call, I am providing documentation regarding procedural questions and timeline concerns in my daughter Almira's removal case prior to our 11:00 AM discussion.

FACTUAL TIMELINE - SEPTEMBER 6, 2025:
DHS Text Messages (Heather Kitto, DHS Supervisor):

5:40 PM: "Hello, this is Heather Kitto - Supervisor with ODHS Child welfare urgently trying to reach you regarding your daughter who has been taken into protective custody and is at the hospital. My workers Wenglphone and Nicole Bennett have been trying to reach you to assist with a ride to the hospital so that we can release custody to you. It's urgent that you return one of our calls as soon as possible so that we can make those arrangements."

5:59 PM: "Please do call. We've received new information that your child has disclosed suicidal intent if she was made to return to your care, so she will remain in protective custody while we assess these concerns and she will not be released to your custody tonight."

7:02 PM (Mother's response): "Hello Ms. Kitty. Where is my daughter?"

Additional DHS Messages:
Sun 10:05 AM: "Hello, she is still at the hospital, and we will be working to try to place her in your relatives home who visited last evening - Mark who volunteered to be a placement resource and certifying them as a foster parent today. In my email I requested if you had any other relatives you wished for the agency to consider for placement. Please let us know via response to that email. A worker will be coming to your home today with the court summons."

Additional Context:
• Uncle Mark present at hospital as mitigating family member
• No parental capacity assessment conducted in 19-minute window between authorization and custody
• Hospital restricted mother's access September 6-8 without court order
• Daughter denies making self-harm statement (statement "recanted" per your acknowledgment)
• Mother immediately responded asking for daughter's location
• No founded allegation letter or service of process/summons/petition

PROCEDURAL CONCERNS:

Due Process Questions: No service prior to shelter hearing (September 8), yet court clerk stated that I "failed to appear." First service attempt documented October 14 (David Milne recorded call confirms). Oregon law recognizes special appearance through written filing - my jurisdictional challenge was filed but discarded by clerk.

Search and Seizure Questions: Child removed and hospital access restricted September 6-8 without court order or written authorization. No judicial finding preceded the access restrictions.

Equal Protection Questions: Jurisdictional challenge filing treated differently - discarded rather than processed through standard procedures, despite timely submission.

Substantive Due Process Questions: No assessment of parental capacity conducted. No services offered until October 1 safety plan (Ashley Crafton email). Fundamental parental rights affected without meeting standard procedural requirements.

FEDERAL COMPLIANCE QUESTIONS:

Oregon's state assurances for federal foster care payment eligibility include:
• Duty to prevent removal through services
• Written conditions for return
• Reasonable efforts before and after removal

Documentation shows no services offered until October 1 safety plan (Ashley Crafton email). No written conditions for return have been provided. No documentation of reasonable efforts to prevent removal has been produced.

FACTUAL INCONSISTENCY:
You stated allegations are: (1) parents acting dangerously, (2) lacking parental capacity. The timeline shows DHS authorized release at 5:40 PM. The factual record reflects no parental conduct between 5:40-5:59 PM that would relate to either stated allegation.

SERVICE DOCUMENTATION:
• No summons served prior to shelter hearing (September 8)
• First service attempt: October 14 (David Milne recorded call confirms)
• Court findings reference "diligent efforts" and "actively avoiding service"
• Laurie Hernandez stated DHS "not required to serve before shelter hearing"

SUPPORTING EVIDENCE:
Text message thread, recorded calls with David Milne and Laurie Hernandez, timeline documentation, and jurisdictional challenge filings available upon request.

I look forward to our discussion and addressing these procedural questions.

Respectfully,
AshLe' Penn

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13 attachments

Ashley Crafton - Safety Plan - 10.1.25.pdf
249K

crafton.pdf
68K

Response to Milne -10.15.25.pdf
88K

David Milne - 10.15.25 - Saftey Plan.pdf
182K

TCA - Notice of Jurisdictional Challenge 10.24.25.pdf
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Response to Ashley Crafton 9.18.25.pdf
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Ashley Crafton -9.8.25.pdf
143K

Response to Ashley Crafton - 9.9.25.pdf
103K

Kimberly Beck - FTA.pdf
278K

Ashley Crafton 9.9.25.pdf
209K

Heather Kiddo - 9.8.25 - Shelter Hearing Appearance.pdf
146K

9.8.25 Shelter Hearing Appearance.pdf
97K

Kat Sanchez - 9.8.25 - Shelter Hearing Appearance.pdf
85K

FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov> Wed, Feb 4, 2026 at 2:52 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: "Laurie Hernandez (she/her/ella)" <LAURIE.K.HERNANDEZ@odhs.oregon.gov>, Reynolds Alicia L <ALICIA.L.REYNOLDS@odhs.oregon.gov>

Ashle,

Thank you for reaching out and sharing your concerns. I have reviewed the information provided, some of which I was unable to view due to it being linked to a google account. Based on what I could review and our two previous conversations, I did not find that the concerns related to the employee's work conduct and decision making were substantiated.

I understand how important this process is for you and your family, and I encourage you to continue working closely with your caseworker, Dave Milne. This collaboration is essential to support timely reunification and achieve the best possible outcome. The agency's goal is to safely reunify children in a timely manner. As we previously discussed, I encourage you to present your concerns related to the courts handling of the court findings by requesting and attending a juvenile dependency court hearing. This can be arranged on your behalf through your caseworker or by contacting the juvenile department, as you did when attempting to appear via writing on the day of the shelter hearing.

I am sorry that our two phone calls have not remedied your concerns, If you feel your concerns are not being addressed or you remain dissatisfied, you may contact the Governor's Advocacy Office for additional support, their website is https://www.oregon.gov/odhs/about/pages/gao.aspx?utm_source=ODHS&utm_medium=egov_redirect&utm_campaign=https%3A%2F%2Fwww.oregon.gov%2Fdhs%2Faboutdhs%2Fpages%2Fgao.aspx and their additional means of contact information are as follows:

Message phone: 503-945-6904

Toll-free: 800-442-5238

TTY: 711

Email: gao.info@odhs.oregon.gov

Fax: 503-378-6532

Their business practice is to respond within two business days

Please know that our goal is to work together in a way that prioritizes safety, respect, and positive outcomes for your family.

Thank you,

Sonya Faulkner (She/her)

Interim D16 Manager

Washington County

503-559-0544

Sonya.Faulkner@odhs.oregon.gov

OREGON DEPARTMENT OF Human Services

From: AshLe' Penn <ashlepenn.ap3@gmail.com>
Sent: Wednesday, January 28, 2026 10:58 AM
To: FAULKNER Sonya <Sonya.FAULKNER@odhs.oregon.gov>
Subject: Pre-Call Documentation - Procedural Questions & Timeline in Almira Penn Case

You don't often get email from ashlepenn.ap3@gmail.com. Learn why this is important

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[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Mon, Apr 27, 2026 at 3:55 PM
Draft To: Sonya.Faulkner@odhs.oregon.gov

Hello Ms. Faulkner,

[Quoted text hidden]

AshLe' Penn <ashlepenn.ap3@gmail.com> Tue, Jul 14, 2026 at 5:09 PM

[redacted]

Forwarded Conversation

Subject: Pre-Call Documentation - Procedural Questions & Timeline in Almira Penn Case

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[Quoted text hidden]

From: **FAULKNER Sonya** <Sonya.FAULKNER@odhs.oregon.gov>
Date: Wed, Feb 4, 2026 at 2:52 PM
To: AshLe' Penn <ashlepenn.ap3@gmail.com>
Cc: Laurie Hernandez (she/her/ella) <LAURIE.K.HERNANDEZ@odhs.oregon.gov>, Reynolds Alicia L <ALICIA.L.REYNOLDS@odhs.oregon.gov>

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Sonya Faulkner (She/her)

Interim D16 Manager

Washington County

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